IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH
CIVIL WRIT PETITION NO. 15057 OF 2004
DR. INDERJIT SINGH WASU ... PETITIONER
VERSUS
MANAGING COMMITTEE, GURU NANAK NAV BHARAT COLLEGE & ORS. ... RESPONDENTS
M.M. KUMAR, J.
1. The prayer in this petition under Article 226 of the Constitution is for quashing the order dated 13.11.2003 effecting recovery of Rs. 2,93,285/- from Death-cum-Retirement Gratuity of the petitioner after superannuation.
2. The petitioner served as Principal from 1.11.1999 and retired on superannuation on 28.1.2003. Ten months after retirement, respondent college issued a show-cause notice and ordered recovery on grounds of excess pay.
3. Having heard learned counsel, we find that relationship of employer and employee terminated upon superannuation. Under Rule 2.2(b) of the Punjab Civil Services Rules, Volume II, recovery from pension cannot be ordered unless departmental proceedings were instituted before retirement with prior sanction of the government.
4. Merely issuing a show-cause notice after superannuation does not constitute initiation of formal disciplinary proceedings. Fastening pecuniary liability on a retired employee without inquiry violates Article 14 of the Constitution.
5. The impugned recovery order dated 13.11.2003 is hereby quashed. Respondents are directed to refund Rs. 2,93,285/- with interest at 12% per annum within two months. Petition allowed with costs.